
Cease and Desist

12 messages

Andy Chen <andy.chen@affirm.com>
To: Chase Kinslow <chase.kinslow@gmail.com>

Fri, Jul 17, 2026 at 12:11 PM

Dear Mr. Kinslow,

I am legal counsel for Affirm, Inc. ("Affirm"). This is your formal notice that all future communications regarding this matter must be directed exclusively to me at this email address. Contact with any other Affirm personnel is strictly prohibited and will not be tolerated. As previously communicated, Affirm confirmed yesterday July 16th that you will **not** be held responsible for the Shop Pay Installments loan XQ8M-YX19 (the "Loan") made in your name, and any furnished tradeline(s) associated with this Loan will be removed from your credit report.

As a direct and necessary consequence of your report of unauthorized activity, Affirm has frozen your account and blocked it from being used to obtain future loans unless and until you re-secure your account. Given that an unauthorized loan was previously taken out in your name, this measure is both necessary and appropriate. You may also find additional information regarding extended fraud alerts and credit freezes at the following Help Center article: <https://helpcenter.affirm.com/s/article/extended-fraud-alert-and-credit-freeze>

Accordingly, you are hereby directed to immediately cease and desist from contacting any other Affirm personnel. Any further attempts to circumvent this directive and contact Affirm employees directly will be blocked and redirected to me without further response. Thank you for your attention to the foregoing.

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**Andy Y. Chen**
Managing Counsel, Litigation

Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>

Fri, Jul 17, 2026 at 1:02 PM

Mr. Chen,

Your email explicitly confirms that Affirm is maintaining a total freeze on my account. Because your platform has blocked my user interface, I am physically prevented from remitting my standard installment payments, including the loan payment due in five days and my separate \$22 obligation.

As Affirm's designated exclusive counsel for this matter, please provide me with an immediate, alternative secure method to remit these payments before the due dates, or formally confirm in writing that Affirm is waiving all interest, delinquency flags, and credit bureau reporting for the duration of the lockout you are enforcing.

Thanks,

[Quoted text hidden]

Andy Chen <andy.chen@affirm.com>
To: Chase Kinslow <chase.kinslow@gmail.com>

Fri, Jul 17, 2026 at 5:00 PM

Dear Mr. Kinslow,

Thank you for your email. Affirm's responses are as follows:

- **Account status:** The account restriction is intended to be temporary. It is not designed to cause a missed payment or default as resolving this is entirely within your control.
- **How to resolve it:** To remove the restriction and make a payment for your installment due in five days and the separate \$22 obligation, please call Affirm Customer Service at (855) 423-3729 to complete our secure verification process (as previously noted in Affirm's email to you: "Please call Affirm to unfreeze your account"). An agent can process these payments with you directly or you may make these payments once you have re-secured your Affirm account.
- **Your repayment obligation:** Regardless of the current account status, you remain fully responsible for repayment in accordance with Affirm's Loan Agreements. The account restriction does not suspend your obligations and your payment due dates remain in effect.
- **No waiver:** Affirm declines your request to waive "all interest, delinquency flags, and credit bureau reporting" for the period you describe. No such waiver will be provided.

Accordingly, since this matter can be resolved immediately by calling (855) 423-3729 (reference Case ID 51206712), Affirm will not accept responsibility for any delays caused by you in restoring your account access or any resulting missed payments. Thank you for your attention to the foregoing.

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Andy Y. Chen
Managing Counsel, Litigation



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**Please call Affirm to unfreeze
your account**

YOUR CURRENT STATUS OF YOUR ACCOUNT IS PREVENTING THE
ACCOUNT FROM BEING RE-OPENED. TO RESOLVE THIS ISSUE, YOU MUST
CALL AFFIRM AT (855) 423-3729 TO COMPLETE OUR SECURE VERIFICATION
PROCESS. ONCE YOU HAVE COMPLETED THIS PROCESS, YOUR ACCOUNT
WILL BE RE-OPENED AND YOU WILL BE ABLE TO MAKE YOUR PAYMENTS.
IF YOU HAVE ANY QUESTIONS, PLEASE CONTACT US AT (855) 423-3729.
AFFIRM

Please call Affirm to unfreeze your account.png
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Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>

Fri, Jul 17, 2026 at 5:06 PM

Mr. Chen,

Your 12:12 PM directive explicitly states that contacting any Affirm personnel other than yourself is 'strictly prohibited and will not be tolerated'. Your 5:00 PM response now directs me to call customer service agents to process a payment.

As a matter of law, I cannot comply with your instruction to contact alternative Affirm personnel while your formal Cease and Desist order remains in effect banning me from doing so. As you are my exclusive point of contact, I remain ready to remit payment securely through you, or via a restored user interface. The responsibility for any operational delay resulting from these conflicting directives remains entirely with Affirm.

Have a good weekend.

Charles W. Kinslow IV, J.D., C.P.A. <https://www.linkedin.com/in/experiencedaccountantlawyer>

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Andy Chen <andy.chen@affirm.com>
To: Chase Kinslow <chase.kinslow@gmail.com>

Fri, Jul 17, 2026 at 5:31 PM

Dear Mr. Kinslow,

There is no conflict in directives: calling (855) 423-3729 to restore your access is the *only* way to resolve your account freeze and I encourage you to do so. Moreover, your disingenuous offer to "remit payment securely through" me is not, and never has been, an available option under the [Payment Methods] section of your Loan Agreements, as I'm sure you are aware. Consequently, the choice to make this call rests solely with you and any delay resulting from your refusal to do so remains your complete responsibility, not Affirms. Thank you for your attention to the foregoing.

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Andy Y. Chen
Managing Counsel, Litigation



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Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>
Cc: boudien.moerman@klarna.com, kerissa.hollis@sezzle.com, chrysty@block.xyz, bpatel@paypal.com, sbrooker@gibsondunn.com, allysonbaker@paulhastings.com, cfornaris@winston.com, duncan.douglass@alston.com, tamara@desilvalawoffices.com, dboies@bsfllp.com, ltribe@heckerfink.com, ltribe@law.harvard.edu, sscheindlin@bsfllp.com, nkatyal@milbank.com, jturley@law.gwu.edu, jhueston@hueston.com, bcarmody@susmangodfrey.com, bwilkinson@wilkinsonstekloff.com, kjudge@law.columbia.edu, hjackson@law.harvard.edu, csunstei@law.harvard.edu, joseph.greenaway@arnoldporter.com, kwehle@ubalt.edu, jvance@law.ua.edu

Sun, Jul 19, 2026 at 9:10 PM

Dr. Chen,

I would be remiss if I neglected to praise your well-documented legal prowess evinced by our email exchanges. Additionally, I appreciate your emotive assessment regarding my sincere effort to offer an alternative payment pursuant to your Cease and Desist order, which I still can't wrap my head around. Finally, thank you for remaining professional throughout our contact and avoiding any slights or jabs that a less prominent member of the legal community might resort to.

Actually, I forgot something. Over the weekend, I did not call the number you provided, nor did I log in to the app. Given the circumstances—this exhaustive ordeal with your company stemming from a single fraudulent charge—I think it’s fair to say that my reluctance to follow your directive is precisely the course of action any reasonable person would choose. Even if said person (“person) did manage to attend law school at a lesser-known institution, graduate (barely), pass the bar in 2010, embark on a journey climbing more ladders than person could count, all culminating in their present role: a backroom stocker at a local Walmart.

I received a littany of emails from Affirm over the weekend informing me of refunds and also where to make my next purchase. I confess I am confounded as to the meaning of “frozen” in Affirms context. Why am I getting emails indicating ongoing account activity for a “frozen” account that can only be unlocked via your directive?

Are refund issuances, and any associated emails, simply machine-automated activity that occurs irrespective of account status? Or does frozen suggest an initial state that precedes melting and liquefaction, like in nature? I don’t have the intellectual capacity to answer that question. Or even make sense of it. But Dr. Chen, you surely can. I mean how many lawyers contain both unparalleled legal skills and what must be a Social Intelligence quotient among the highest in the civilized world.

I respectfully request your perspective on these matters when convenient.

Respectfully,

Booger Two Shoes

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Kerissa Hollis <kerissa.hollis@sezzle.com>
To: chase.kinslow@gmail.com

Sun, Jul 19, 2026 at 9:10 PM

Thank you for your email. I am no longer with Sezzle. For compliance matters please reach out to compliance@sezzle.com and legal matters to legal@sezzle.com.

Kerissa Hollis
General Counsel • 972.533.0090


Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>

Sun, Jul 19, 2026 at 9:16 PM

Mr. Chen,

Attached is a draft of the civil complaint prepared for filing in the Northern District of California.

I will spare you an exhaustive recitation of the facts, though the documented timeline of your directives remains the centerpiece. The most glaring proof of Affirm's operational incompetence is the fact that when you issued your 12:11 PM formal directive, adopting and weaponizing an automated system-generated blanket freeze on my account, you were completely flying blind. You aggressively referenced the isolated Shop Pay Installments loan, entirely oblivious to the fact that I had already put Brian Hughes, Mindy Stevenson, Kelly Gillis, and Manolo Sanchez on direct notice regarding the broader Anthropic breach and the resulting unjust enrichment.

My overriding concerns regarding Affirm's systemic failure to protect my information, conduct a legitimate investigation, and manage a multi-faceted security breach are inextricably linked. Even after I took the initiative to independently secure the Anthropic refund and uploaded the supporting documentation directly into your app portal, my primary concern remained whether Affirm's notoriously unreliable backend was actually capable of correctly processing the credit. You enforced a blanket legal hold over the entire account while remaining completely ignorant of these overlapping operational failures.

Your lack of visibility became painfully obvious when I asked how to remit payment for my "separate \$22 obligation" because the system freeze you were enforcing locked me out of the interface. Your 5:00 PM response merely parroted my exact phrasing back to me. Had you actually bothered to review the ledger or communicate with your own colleagues before issuing blanket legal threats, you would have realized you were demanding I call a generic hotline to service an account whose security and operational integrity you didn't even fundamentally understand.

I adhered strictly to your initial legal boundary, refusing to log in or call. Yet, while my account was supposedly under this strict legal lockdown, Affirm's automated systems spent the weekend actively emailing me to solicit future purchases.

It takes a remarkable lack of operational awareness for a Managing Counsel to threaten a consumer for interacting with a platform that is simultaneously begging them to do so, all while strictly enforcing system holds on accounts he clearly has not fully reviewed. To subsequently label my compliance with your own legal boundary as a "disingenuous offer" is certainly a choice, but it does not erase the impossible paradox you engineered.

It is a fascinating time to be in the "Buy Now, Pay Later" sector. Given the current economic headwinds, the increasingly hostile regulatory climate surrounding algorithmic financial harm, and Affirm's already abysmal public track record with the Better Business Bureau, I imagine the company is highly sensitive to optics. A meticulously documented, publicly accessible federal UDAAP lawsuit demonstrating a complete systemic failure of your internal compliance mechanisms—helmed by a Managing Counsel who contradicts his own legal holds and blindly threatens consumers without understanding the scope of their compromised accounts—seems like a profoundly unforced error.

I am leaving this draft with you for your review. It remains unfiled at this time. I will leave it entirely to your discretion to determine how your organization wishes to resolve its exposure.

Chase Kinslow

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Draft_Complaint_Kinslow_v_Affirm.pdf

106K

Dear Mr. Kinslow,

Affirm is in receipt of your weekend correspondence. Please note that automated, system-generated marketing and refund emails do not alter the restricted status of your account nor do they supersede my previous directives. Accordingly, Affirm's position remains unchanged: to restore your account access and resolve this issue, you must contact customer care at (855) 423-3729.

Should you choose to pursue this frivolous matter, Affirm is prepared to vigorously defend its position and reserves all rights to seek all damages and costs against you, including, but not limited to, filing a counterclaim for the \$1,185.52 combined outstanding balance for loan IDs WFPW-I3IB, JU1A-H4IU, QOTK-FFT1, and W57T-CWET (as of today's date) and recovering all applicable legal fees and costs (See Section 15(d) of your Loan Agreements: Affirm "will have the right to be paid back by you for all of its costs and expenses in enforcing this Agreement to the extent not prohibited by applicable law. Those expenses include, for example, reasonable attorneys' fees.").

Thank you for your attention to the foregoing.

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Andy Y. Chen

Managing Counsel, Litigation



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Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>

Mon, Jul 20, 2026 at 6:12 PM

Dear Mr. Chen,

I am in receipt of your 4:02 PM correspondence.

Before you proceed with drafting any counterclaims based on the \$1,185.52 balance you cited, I strongly suggest you pull a current, accurate ledger for my profile.

Specifically, you may want to cross-reference the four loan IDs you itemized against Affirm's own automated refund processing logs—paying particular attention to the refund already processed under the "Cyb" label for Loan ID

W57T-CWET.

Furthermore, your attempt to artificially accelerate non-delinquent accounts to "due today"—while entirely omitting other active installment loans tied to my profile—suggests you are not operating with a complete set of facts.

Your legal demand appears to be based on an outdated and legally defective ledger. I will await your updated correspondence once you have reviewed the actual status of these accounts.

Regards,

Chase Kinslow

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Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>

Mon, Jul 20, 2026 at 6:27 PM

Mr. Chen,

Please note a brief clerical correction to my previous email: the processed refund I referenced actually applies to a Google One loan, despite Affirm still holding the pending refund documentation for the Anthropic transaction, see attached correspondence.

This internal accounting discrepancy on Affirm's end only further illustrates my point: the \$1,185.52 counterclaim balance you threatened incorporates misapplied, extinguished, and/or pending refunded debt.

I await your updated and fully corrected ledger.

Regards,

Chase Kinslow

Charles W. Kinslow IV, J.D., C.P.A. <https://www.linkedin.com/in/experiencedaccountantlawyer>

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3 attachments



Anthropic Refund.pdf

36K



Anthropic Invoice.pdf

32K



Anthropic email .pdf

207K

Chase Kinslow <chase.kinslow@gmail.com>
To: Andy Chen <andy.chen@affirm.com>

Thu, Jul 23, 2026 at 9:45 PM

Mr. Chen,

Please see attached image, which is the associated loan you advised me was resolved. You know, the one I had to file a police report for, and etc...

9:42



Installments

Order #PE270138
Perfume Empire



Remaining

\$78.47

\$26.16 overdue since yesterday

[View loan terms](#)

Payments schedule

[Manage](#)

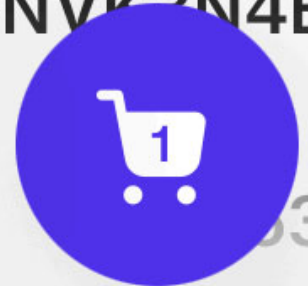


Make payment

Loan details

Loan ID

O-NVK2N4E



Original

3

On Fri, Jul 17, 2026 at 12:12 PM Andy Chen <andy.chen@affirm.com> wrote:

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